

to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that Plaintiff’s failure to timely oppose Defendant’s Motions is deemed to be her consent to the granting of all three motions.

Ruling

1. Defendant’s Motion to Compel Plaintiffs’ Responses to Form Interrogatories (Set Three) is granted. Sanctions in the amount of \$1,522.95 are awarded to Defendant.
2. Motion to Compel Further Responses to Special Interrogatories (Set Two). Sanctions in the amount of \$3,022.95 are awarded to Defendant.
3. Motion to Compel Responses to Special Interrogatories (Set Two). Sanctions in the amount of \$3,035.90 are awarded to Defendant.
4. Plaintiff shall pay sanctions in the amount totaling \$7,581.80 to Defendant’s Counsel no later than ten (10) days from the date of this hearing.
5. The Court will execute the three proposed orders granting each motion lodged on September 16, 2026.

16. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET TWO) AS AGAINST PLAINTIFF**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 15, above.

17. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO SPECIAL INTERROGATORIES (SET TWO) AS AGAINST PLAINTIFF**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 15, above.